

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carlo Vescovi	Team: Squad #14	CCRB Case #: 202007674	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Thursday, 10/17/2019 2:53 PM	Location of Incident: Near Bainbridge Avenue and East 211th Street	18 Mo. SOL 12/2/2021	Precinct: 52
Date/Time CV Reported Fri, 11/20/2020 2:24 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 11/20/2020 2:24 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Jonathan Rivera	02049	949550	052 PCT
2. PO Edward Barrett	09973	956415	052 PCT
3. PO Steven Torres	19874	962846	052 PCT
4. PO Michelle Almanzar	01740	956461	052 PCT
5. LT Antonio Jimenez	00000	948225	052 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. Garry Tuma	20648	959317	052 PCT
2. PO Raymond Marrero	25168	935254	052 PCT
3. PO Shanan Consuegraperez	05649	960390	052 PCT
4. PO Tony Basilio	06027	933635	052 PCT
5. LT Roberto Gutierrez	00000	945796	052 PCT
6. PO Christopher Leonard	1622	960796	052 PCT
7. PO Dorli Rodriguez	14403	962060	052 PCT
8. PO Eduardo Mejia	10215	960929	052 PCT
9. DT3 Robert Deluca	01246	960443	052 DET
10. PO Jose Fernandez	96052	960529	052 PCT
11. PO Nico Martino	06781	967595	052 PCT
12. PO Nicholas Konner	09715	940340	052 PCT
13. PO Steven Tapia	22075	960015	052 PCT
14. PO Solanyi Paredes	14335	966255	052 PCT
15. PO Frances Ventura	08160	961418	052 PCT
16. PO Tara Paprota	16745	955294	052 PCT
17. PO Marielena Reillyderasmo	08644	948874	052 PCT
18. PO Raymond Perez	00506	955319	052 PCT
19. PO Gregory Scott	00887	961263	052 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
20. PO Paul Cho	04631	934638	052 PCT
21. PO Joseph Giacoio	06240	966591	052 PCT
22. SGT Ramandeep Lehra	02229	952977	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Jonathan Rivera	Abuse: Sergeant Jonathan Rivera stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Unable to Determine
B . PO Edward Barrett	Abuse: Police Officer Edward Barrett stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Unable to Determine
C . PO Michelle Almanzar	Abuse: Police Officer Michelle Almanzar stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	C . Unable to Determine
D . PO Edward Barrett	Force: Police Officer Edward Barrett used physical force against § 87(2)(b)	D . Within NYPD Guidelines
E . SGT Jonathan Rivera	Force: Sergeant Jonathan Rivera used a taser against § 87(2)(b)	E . Within NYPD Guidelines
F . SGT Jonathan Rivera	Abuse: Sergeant Jonathan Rivera threatened § 87(2)(b) with the use of force.	F . Substantiated
G . SGT Jonathan Rivera	Discourtesy: Sergeant Jonathan Rivera spoke discourteously to § 87(2)(b)	G . Within NYPD Guidelines
H . SGT Jonathan Rivera	Force: Sergeant Jonathan Rivera used a taser against § 87(2)(b)	H . Within NYPD Guidelines
I . PO Edward Barrett	Force: Police Officer Edward Barrett used physical force against § 87(2)(b)	I . Within NYPD Guidelines
J . SGT Jonathan Rivera	Force: Sergeant Jonathan Rivera used physical force against § 87(2)(b)	J . Within NYPD Guidelines
K . PO Michelle Almanzar	Discourtesy: Police Officer Michelle Almanzar spoke discourteously to § 87(2)(b)	K . Within NYPD Guidelines
L . SGT Jonathan Rivera	Force: Sergeant Jonathan Rivera struck § 87(2)(b) with a taser.	L . Within NYPD Guidelines
M . SGT Jonathan Rivera	Force: Sergeant Jonathan Rivera fired his gun at § 87(2)(b)	M . Substantiated
N . PO Edward Barrett	Discourtesy: Police Officer Edward Barrett spoke discourteously to § 87(2)(b)	N . Within NYPD Guidelines
O . PO Michelle Almanzar	Abuse: Detective Michelle Almanzar frisked § 87(2)(b)	O . Substantiated
P . PO Steven Torres	Abuse: Police Officer Steven Torres frisked § 87(2)(b)	P . Substantiated
Q . PO Steven Torres	Abuse: Police Officer Steven Torres searched § 87(2)(b)	Q . Substantiated
R . LT Antonio Jimenez	Abuse: Lieutenant Antonio Jimenez sexually humiliated § 87(2)(b) through failure to cover.	R . Substantiated
S . PO Michelle Almanzar	Abuse: Police Officer Michelle Almanzar failed to provide § 87(2)(b) with a business card.	S . Within NYPD Guidelines
T . PO Steven Torres	Abuse: Police Officer Steven Torres failed to provide § 87(2)(b) with a business card.	T . Alleged Victim Unavailable

Case Summary

On November 20th, 2020, § 87(2)(b) filed the following complaint via the CCRB's online website on behalf of § 87(2)(b) and § 87(2)(b) friend, § 87(2)(b).

This case was designated as sensitive due to media coverage of the incident in the Gothamist, New York Post, News 12 (BR 32-35).

On October 17th, 2019, at approximately 2:53pm, § 87(2)(b) operated a Volkswagen Atlas SUV with § 87(2)(b) as the front seat passenger near East 211th Street and Bainbridge Avenue in the Bronx. Sgt. Jonathan Rivera and Police Officers Edward Barrett and Michelle Almanzar, all of the 52nd Precinct, conducted a vehicle stop as § 87(2)(b) was allegedly not wearing his seatbelt (**Allegations A-C: Abuse of Authority, unable to determine**). § 87(2)(b) provided identification during the vehicle stop, which yielded positive results for an open warrant. PO Barrett ordered § 87(2)(b) to exit the vehicle, and he complied before suddenly re-entering the front driver's side door. PO Barrett pulled § 87(2)(b) from the driver's side as Sgt. Rivera tased § 87(2)(b) from the passenger's side (**Allegations D, E: Force, within NYPD guidelines**). PO Barrett used multiple hand strikes in his efforts to remove § 87(2)(b) from the driver's seat, and Sgt. Rivera entered the Volkswagen from the passenger's side, headbutted § 87(2)(b) and struck him with the butt of his taser, as well as tasing him for a second time in drive stun mode (**Allegations H-J, L: Force, within NYPD guidelines**). During this time, Sgt. Rivera told § 87(2)(b) "Yo – if I have to fucking end up shooting you, bro," and, "I'm going to fucking shoot you," (**Allegation F: Abuse of Authority, substantiated**). In addition to Sgt. Rivera, PO Almanzar and PO Barrett also used the word, "fuck," during the struggle, (**Allegations G, K, N: Discourtesy, within NYPD guidelines**). § 87(2)(b) vehicle suddenly reversed, and Sgt. Rivera fired his gun at § 87(2)(b) striking § 87(2)(b) once in the chest (**Allegation M: Force, substantiated**).

Around this time, Police Officers Steven Torres, Garry Tuma, Shanan Consuegraperez, Tony Basilio, Christopher Leonard, Dorli Rodriguez, Eduardo Mejia, Jose Fernandez, Nico Martino, Nicholas Konner, Solanyi Paredes, Frances Ventura, Tara Paprota, Marielena Reillyderasmo, Raymond Perez, Gregory Scott, Paul Cho, Joseph Giacoio, Sergeants Raymond Marrero, Rahmandeep Lehra, Lieutenants Antonio Jimenez, Roberto Gutierrez, of the 52nd Precinct, and Detective Robert Deluca, of the 52nd Detectives Squad, responded to the incident location as back up.

After Sgt. Rivera shot § 87(2)(b) PO Barrett pulled § 87(2)(b) out of the driver's side door, and § 87(2)(b) pants came down, which exposed his genitals. Lieutenant Jimenez failed to cover § 87(2)(b) exposed genitals for approximately six minutes (**Allegation R, Abuse of Authority, substantiated**). § 87(2)(b) exited the vehicle and PO Almanzar frisked § 87(2)(b) (**Allegation O: Abuse of Authority, substantiated**). PO Torres then escorted § 87(2)(b) to a marked squad car and frisked him and searched one of his pockets before placing him inside the police vehicle (**Allegations P, Q: Abuse of Authority, substantiated**). PO Almanzar failed to provide § 87(2)(b) with a business card (**Allegation S: Abuse of Authority, within NYPD guidelines**). PO Torres allegedly failed to provide § 87(2)(b) with a business card (**Allegation T: Abuse of Authority, alleged victim unavailable**).

No summonses or arrests resulted from this incident.

The New York City Office of Chief Medical Examiner's Report of Autopsy (BR 01) determined that § 87(2)(b) death was a homicide caused by a gunshot wound to § 87(2)(b) torso.

The New York State Attorney General's Office declined to charge Sgt. Rivera (BR 02), and the NYPD Force Investigation Division (FID) cleared Sgt. Rivera of any misconduct (BR 03).

BWC footage for this case was received from Sgt. Rivera, PO Barrett, PO Almanzar, PO Torres, PO Tuma, PO Consuegraperez, PO Basilio, PO Leonard, PO Rodriguez, PO Mejia, PO Fernandez, PO Martino, PO Konner, PO Paredes, PO Ventura, PO Paprota, PO Reillyderasmo, PO Perez, PO Scott, PO Cho, PO Giacoio, Det. Deluca, Sgt. Marrero, Sgt. Lehra, Lieutenant Jimenez,

and Lieutenant Gutierrez.

Cell phone footage was also received from witnesses § 87(2)(b) and § 87(2)(b). The relevant aspects of all footage are discussed in further detail below.

Allegations not pleaded - refusal to obtain medical treatment:

After Sergeant Rivera shot § 87(2)(b), PO Barrett opens the driver's side door of the Volkswagen and pulls § 87(2)(b) out of his seat and onto the street, as captured at 0:37 on the player timestamp of § 87(2)(b) cell phone video (BR 15). PO Barrett handcuffs § 87(2)(b) then flips § 87(2)(b) onto his back. PO Barrett begins performing CPR after donning blue medical gloves, captured on PO Almanzar's BWC at 5:18, approximately 60 seconds after her BWC captures the firearm discharge. Sgt. Rivera is captured telling PO Barrett, "Start doing CPR, start doing CPR," as Sgt. Rivera himself puts on a pair of blue medical gloves (5:40). As PO Barrett performs CPR at 5:53 on PO Almanzar's BWC player timestamp, PO Barrett states, "Yo, stay with me man," three times to § 87(2)(b). Upon Lieutenant Jimenez's arrival, approximately 50 seconds later, Sgt. Rivera is captured performing CPR on § 87(2)(b) who is still in same location on the street. PO Barrett and PO Almanzar are both captured again telling § 87(2)(b) "Stay with us, man." At 4:40 on the player timestamp of Lieutenant Jimenez's BWC (BR 06), EMTs arrive at the location and begin performing CPR.

At 8:02 on the player timestamp of PO Almanzar's BWC footage, Sgt. Rivera is captured stating, § 87(2)(b) was fighting me...the engine was on...my hand got tired." When asked about this remark in his CCRB interview, Sgt. Rivera testified the remark was a reference to his hand getting tired from administering CPR to § 87(2)(b). Given that § 87(2)(b) received consistent medical care from various officers until EMTs arrived on the scene and took over § 87(2)(b) care, there was no significant lapse in CPR from the moment of the firearms discharge until § 87(2)(b) was in the custody of EMTs. As such, the allegation of refusal to obtain medical treatment was not plead.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sgt. Jonathan Rivera stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation (B) Abuse of Authority: Police Officer Edward Barrett stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation (C) Abuse of Authority: Police Officer Michelle Almanzar stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

The investigation established the following facts: On the date and time of the incident, § 87(2)(b) operated a Volkswagen Atlas SUV with § 87(2)(b) as the front seat passenger. PO Almanzar and Sgt. Rivera were the occupants of an unmarked police vehicle operated by PO Barrett. At the intersection of East 211th Street and Bainbridge Avenue, in the Bronx, Sgt. Rivera, PO Barrett, and PO Almanzar stopped § 87(2)(b) vehicle based on a seatbelt infraction that PO Barrett personally observed. No summons was issued for the alleged infraction.

PO Barrett testified (BR 07) that as he passed § 87(2)(b) vehicle, PO Barrett observed § 87(2)(b) in the driver's seat without his seatbelt on. PO Barrett then conducted the vehicle stop. When he reached the driver's side window, PO Barrett observed that § 87(2)(b) was wearing his seatbelt. PO Barrett still intended to give § 87(2)(b) a summons for not wearing his seatbelt as previously observed.

Sgt. Rivera testified (BR 08) that as the officers passed § 87(2)(b) vehicle, PO Barrett stated that he observed § 87(2)(b) without his seatbelt on, but Sgt. Rivera could not personally recall having observed the infraction himself.

PO Almanzar testified (BR 09) that she was in the rear seat of the police vehicle and did not observe § 87(2)(b) alleged seatbelt infraction.

§ 87(2)(b) remained unavailable to the investigation (see IAs for contact attempts).

At 0:35 on the player timestamp of PO Barrett's BWC footage (BR 10), PO Barrett approaches the window of § 87(2)(b) vehicle and requests § 87(2)(b) license and vehicle registration. § 87(2)(b) is captured wearing his seatbelt. At 0:52, PO Barrett tells § 87(2)(b) "When I pulled up next to you, it looked like you weren't wearing a seatbelt, that's why I'm stopping you."

Although PO Barrett's BWC showed that § 87(2)(b) was wearing his seatbelt by the time PO Barrett reached the driver's side window of the Volkswagen, it did not capture if § 87(2)(b) was wearing the seatbelt when PO Barrett initially observed the alleged infraction. § 87(2)(g)

it is therefore recommended that Allegations A-C be closed as **unable to determine**.

Allegation (D) Force: Police Officer Edward Barrett used physical force against § 87(2)(b)
Allegation (E) Force: Sergeant Jonathan Rivera used a taser against § 87(2)(b)
Allegation (H) Force: Sergeant Jonathan Rivera used a taser against § 87(2)(b) **Allegation (I) Force: Police Officer Edward Barrett used physical force against § 87(2)(b)** **Allegation (J) Force: Sergeant Jonathan Rivera used physical force against § 87(2)(b)** **Allegation (L) Force: Sergeant Jonathan Rivera struck § 87(2)(b) with a taser.**

PO Almanzar's BWC (BR 05) captures the following: At 0:45 on the player timestamp, PO Barrett asks for § 87(2)(b) driver's license, and § 87(2)(b) provided PO Barrett with an ID, known to the investigation to belong to § 87(2)(b) brother, § 87(2)(b). PO Barrett conducted a warrant audit (BR 37) on the license using PO Barrett's department issued cell phone (2:00-2:15), and results of the warrant showed that the ID § 87(2)(b) provided had open warrants. According to the New York State Attorney General's report, these warrants were for offenses of Disorderly Conduct, Spitting, and Littering (BR 36). At 2:16, PO Barrett speaks to Sgt. Rivera on the passenger's side of the vehicle. PO Barrett states, § 87(2)(b) popped [meaning there were positive results for an open warrant], so I'm just going to talk to him." PO Barrett then tells § 87(2)(b) he needs to talk to § 87(2)(b) indicating that § 87(2)(b) should exit his vehicle.

From 2:25 to 2:35 on the player timestamp of PO Barrett's BWC, § 87(2)(b) exits the driver's seat and PO Barrett tells § 87(2)(b) "Yea make sure your car is in park" (2:30). PO Barrett then asks § 87(2)(b) "You have anything on you you're not supposed to have?" and § 87(2)(b) tells PO Barrett he does not. PO Barrett tells § 87(2)(b) "Alright I'm just gonna pat you down real quick." At this, § 87(2)(b) slowly turns his back to PO Barrett and re-enters the driver's seat of his vehicle (2:35-2:38). PO Barrett tells § 87(2)(b) "Right here, right here," and beckons § 87(2)(b) back towards the exterior side of § 87(2)(b) vehicle. § 87(2)(b) disregards PO Barrett and begins closing his driver's side door but is ultimately unsuccessful as PO Barrett blocks the door with his body. At 2:45, Sgt. Rivera deploys his taser from the passenger's side window and the crack of the taser cartridge is followed immediately by § 87(2)(b) screams. § 87(2)(b) is captured pulling the prongs from his chest at 2:45 on Sergeant Rivera's BWC footage (BR 14). PO Barrett repeatedly yanks § 87(2)(b) by his legs and the left side of his body as Sgt. Rivera states, "Pull § 87(2)(b) out]. From 2:56 to 3:27, PO Barrett repeatedly strikes § 87(2)(b) in his head as § 87(2)(b) refuses to exit his vehicle. At 3:01, Sgt. Rivera opens the front passenger's side door of § 87(2)(b) vehicle and climbs across the § 87(2)(b) in the front passenger's seat. At 3:11, Sgt. Rivera tases § 87(2)(b) a second time and § 87(2)(b) is captured screaming in response. At 3:14, § 87(2)(b) right hand is captured clutching the gearshift as both PO Barrett and Sgt. Rivera are captured stating, "Put it in park, put in park." At 3:32, Sgt. Rivera, now fully inside § 87(2)(b) vehicle across § 87(2)(b) lap, is captured headbutting § 87(2)(b) at least once. At 3:37, Sgt. Rivera uses his taser to strike § 87(2)(b) in the face at least once.

PO Barrett testified that his warrant audit of § 87(2)(b) yielded positive results for an open warrant, and that § 87(2)(b) was considered under arrest at that point. As § 87(2)(b) exited the vehicle, PO Barrett turned right to hand his department cell phone and § 87(2)(b) ID to PO

Almanzar. When he turned back to face § 87(2)(b) was in the process of re-entering the driver's seat of the Volkswagen. PO Barrett perceived this as § 87(2)(b) attempting to flee the vehicle stop. PO Barrett positioned himself in the path of the driver's side door and prevented § 87(2)(b) from closing it. PO Barrett observed § 87(2)(b) attempting to change the gear shift to drive, whereupon PO Barrett began to pull on § 87(2)(b) legs, chest, and shoulders to remove him from the vehicle. PO Barrett observed Sgt. Rivera draw his taser and deploy it on § 87(2)(b) which caused § 87(2)(b) to have a reaction but it did not incapacitate him. § 87(2)(b) continued to reach for the gear shift of his vehicle as PO Barrett punched § 87(2)(b) in the head multiple times to prevent him from fleeing the car stop. During this time, PO Barrett heard § 87(2)(b) revving the engine of his Volkswagen repeatedly.

Sgt. Rivera testified that after § 87(2)(b) re-entered the driver's seat, § 87(2)(b) reached for the gear shift and Sgt. Rivera heard the engine of the Volkswagen rev. At this point, Sgt. Rivera first deployed his taser through the passenger's side window with the goal of incapacitating § 87(2)(b) so PO Barrett could remove § 87(2)(b) from the driver's seat. The taser momentarily incapacitated § 87(2)(b) but § 87(2)(b) pulled the prongs out of his chest after one cycle of the taser and § 87(2)(b) refocused his efforts to move the gear shift out of park. At this point, Sgt. Rivera opened the passenger's side door and entered § 87(2)(b) vehicle, leaning across § 87(2)(b) in the front passenger's seat. Sgt. Rivera could not specifically recall, but did not dispute headbutting § 87(2)(b) to gain compliance and prevent § 87(2)(b) from putting the gear shift into drive. Sgt. Rivera attempted to tase § 87(2)(b) a second time in drive-stun mode as the cartridge on his taser was spent, but was not sure if he made contact § 87(2)(b) during this attempt. Sgt. Rivera then attempted to tase § 87(2)(b) an additional time, but his taser was not working, which led Sgt. Rivera to believe the taser was broken. Sgt. Rivera then used the butt of his taser to strike § 87(2)(b) in his head, again to prevent § 87(2)(b) from moving the gear shift. Sgt. Rivera's primary focus was to prevent the car from moving, as Sgt. Rivera feared that PO Barrett, who remained on the driver's side, could be seriously injured by § 87(2)(b) moving the Volkswagen.

NYPD Patrol Guide Section 221-01 (BR 11) states that, "in determining whether the use of force is reasonable, members of the service should consider the following: nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the number of MOS; size, age, and condition of the subject in comparison to the MOS; subject's violent history; presence of hostile crowd; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence."

NYPD Patrol Guide Section 221-02 (BR 12) stipulates that officers should, "apply no more than the reasonable force necessary to gain control" and defines active aggression as the threat or overt act of an assault (through physical or verbal means) coupled with the present ability to carry out the threat or assault, which reasonably indicates that an assault or injury to any person is imminent.

NYPD Patrol Guide Section 221-08 (BR 13) states that a conducted electrical weapon (CEW) should only be used against person who are actively resisting, exhibiting active aggression, or prevent individuals from physically injuring themselves or other persons present.

§ 87(2)(g)
§ 87(2)(b) gt. Rivera and PO Barrett's testimonies were consistent with PO Barrett's BWC footage, which captured § 87(2)(b) re-entering the driver's seat of his vehicle and repeatedly attempting to move the gear shift of the vehicle out of park as PO Barrett and Sgt. Rivera instruct § 87(2)(b) to exit the Volkswagen and put the gear shift in park. § 87(2)(g)
§ 87(2)(b) was attempting to evade arrest by flight, indicated by his re-entry to the vehicle, revving the engine, and his multiple attempts to manipulate the gear shift of the Volkswagen, which was captured in PO Barrett's BWC footage.

It is therefore recommended that Allegations D, E, Allegations H-J, Allegation L, be closed as within NYPD guidelines.

Allegation (F) Abuse of Authority: Sgt. Jonathan Rivera threatened § 87(2)(b) with the use of force.

Allegation (M) Force: Sgt. Jonathan Rivera fired his gun at § 87(2)(b)

It is undisputed that Sgt. Rivera threatened to shoot § 87(2)(b) and fired his gun once, striking § 87(2)(b) in the chest. As previously mentioned, the warrants for which § 87(2)(b) ID ‘popped’ were for the offenses of Disorderly Conduct, Spitting, and Littering.

At 2:58 on the player timestamp of his BWC (BR 14), Sgt. Rivera opens the passenger’s side door of the Volkswagen. § 87(2)(b) has just pulled the taser prongs from Sgt. Rivera’s first taser deployment from his chest. Sgt. Rivera states, “Yo – if I have to fucking end up shooting you § 87(2)(b) bro ...”. At 3:04, Sgt. Rivera screams at § 87(2)(b) “Yo bro...I’m going to fucking shoot you,” (see Allegation G for discourtesy). At 3:05, Sgt. Rivera is captured holding and pointing his firearm towards § 87(2)(b) in the driver’s seat. Some portion of Sgt. Rivera’s upper body is now inside § 87(2)(b) vehicle, leaning over § 87(2)(b) in the passenger’s seat. At 3:20, Sgt. Rivera is captured drive stunning § 87(2)(b) in his leg with the taser in his left hand, followed by the sound of § 87(2)(b) screaming. PO Barrett continues to pull on § 87(2)(b) shoulder, chest, and head to try and remove § 87(2)(b) from the driver’s seat. From 3:20-3:36, Sgt. Rivera continues to use physical force to attempt to aid PO Barrett in removing § 87(2)(b) from the seat (see Allegations J, L). At 3:36, Sgt. Rivera’s BWC is knocked off and stops recording.

The following portion of the incident is most clearly captured from PO Almanzar’s BWC footage, beginning at 3:56 on the player timestamp. Sgt. Rivera, now fully inside the Volkswagen kneeling across the center console, is captured using the butt of his taser to hit § 87(2)(b) in the head as PO Barrett pulls from the driver’s side. At 4:04, PO Almanzar can be heard stating, “Yo, yo,” and the Volkswagen begins to roll forward. At 4:09, the Volkswagen’s engine can be heard revving and the vehicle moves backwards. The open driver’s side door of the Volkswagen either hits or almost hits PO Barrett, who is forced to step backwards approximately three feet. The vehicle comes to a stop less than one car length from where it started. From 4:10-4:11, PO Barrett rushes back to the driver’s side door, and at 4:11, the sound of Sgt. Rivera shooting § 87(2)(b) in the chest is captured.

Cell phone footage from witness § 87(2)(b) (BR 15) shows from 0:00-00:13, PO Barrett and PO Almanzar are captured attempting to pull § 87(2)(b) from the driver’s seat. At 0:14, the Volkswagen rolls forwards slightly before coming to a stop at 0:16 (4:04-06 on PO Almanzar’s BWC footage). From 0:16-0:20, the Volkswagen reverses approximately five feet before coming to a stop. PO Barrett is captured moving out of the way of the open driver’s side door. At 0:20, PO Barrett is standing approximately one foot away from the Volkswagen, parallel the vehicle’s rear wheel. At 0:20-0:21, PO Barrett runs back to the driver’s side door and reaches for the handle. At 0:21, the sound of Sgt. Rivera discharging his firearm is captured, and PO Barrett successfully opens the driver’s side door and pulls § 87(2)(b) from the Volkswagen.

Sgt. Rivera testified that he told § 87(2)(b) “Yo – if I have to end up shooting you,” and did not dispute telling § 87(2)(b) “I’m going to fucking shoot you.” Sgt. Rivera made these

remarks to gain compliance and to indicate to § 87(2)(b) that the vehicle stop was a “life or death situation.” When Sgt. Rivera climbed into the passenger seat of the vehicle, his primary focus was to prevent the Volkswagen from moving. Sgt. Rivera testified that his decision to shoot § 87(2)(b) in the chest was founded in his concern that PO Barrett or PO Almanzar could have been struck or seriously injured by § 87(2)(b) driving the Volkswagen in any direction. This concern stemmed from the Volkswagen suddenly reversing and PO Barrett and PO Almanzar falling out of Sgt. Rivera's eyeline. Sgt. Rivera also cited the concern for his own safety given he was not seated properly with a seatbelt in the front of the Volkswagen. Finally, Sgt. Rivera testified that during the struggle, § 87(2)(b) stated, in some and substance, “Grab the nine,” or “Coja el nueve,” in Spanish, which Sgt. Rivera interpreted to be a reference to a nine-millimeter gun.

CCRB Senior Investigative Manager Edwin Pena reviewed both PO Almanzar and PO Barrett's BWC footage during this aspect of the incident and was unable to identify any remarks made by § 87(2)(b) apart from, “Por favor,” (please) and “Quitamelo,” (get it off me). In Sgt. Rivera's GO-15 interview conducted by the NYPD's Force Investigation Division (BR 31), Sgt. Rivera states, § 87(2)(b) said something in Spanish – it sounded like ‘buca nueve,’ or something like that.” (21:45, phonetic spelling). Sergeant Rivera did not provide an English translation during the interview, or otherwise make any reference to this alleged remark as further justification for his firearm discharge. Sgt. Rivera testified that § 87(2)(b) did not react to any remarks that § 87(2)(b) made (22:17).

NYPD Patrol Guide Procedure 221-01 states that use of deadly physical force can only be used to protect MOS and/or the public from imminent serious physical injury or death. Members of service are prohibited from discharging their firearms to subdue a fleeing felon who presents no threat of imminent death or serious physical injury to the MOS or another person present.

Sgt. Rivera's testimony that he lost sight of PO Barrett and PO Almanzar after the sudden reversal of the Volkswagen was generally consistent with PO Almanzar's BWC footage and § 87(2)(b) cell phone footage, which captures PO Barrett moving backwards out of the path of the Volkswagen's driver's side door as the car reverses. While PO Almanzar's BWC footage and § 87(2)(b) cell phone footage showed that PO Barrett reached the driver's side window just as Sgt. Rivera discharged his firearm, § 87(2)(g)

§ 87(2)(b), Sgt. Rivera also cited two more factors: Firstly, § 87(2)(b) alleged remark to, “grab the nine,” in Spanish, which Sgt. Rivera testified occurred after Sgt. Rivera had already drawn his firearm. This testimony was inconsistent with Senior Investigative Manager Edwin Pena's review of PO Almanzar and PO Barrett's BWC footage, in which no such remark was captured. § 87(2)(g)

§ 87(2)(g) As such, it is recommended that **Allegation M** be closed as substantiated.

§ 87(2)(g) It is therefore recommended that **Allegation F** be closed as substantiated.

Allegation (R) Abuse of Authority: Lieutenant Antonio Jimenez sexually humiliated § 87(2)(b) through failure to cover.

As PO Barrett pulled a now-shot § 87(2)(b) from the driver's seat of the vehicle, § 87(2)(b) pants and underwear slid below his waist, exposing his genitals. This is captured on § 87(2)(b) cell phone footage (BR 15), beginning at 0:31 on the player timestamp. PO Barrett then flips § 87(2)(b) onto his stomach and places him in handcuffs, before positioning § 87(2)(b) onto his back so that PO Barrett and Sgt. Rivera can perform CPR on § 87(2)(b). At 06:10 on PO Almanzar's BWC footage, Lieutenant Jimenez is captured arriving on scene. At this point in time, Lieutenant Jimenez is the ranking supervisor on scene.

At 1:30 on the player timestamp of Lieutenant Jimenez's BWC, (BR 06) his arrival on scene is captured and § 87(2)(b) can be seen laying on his back as Sgt. Rivera performs CPR, and at 2:24 § 87(2)(b) is captured with his pants just above his knee and his genitals exposed. From 1:40 to 6:30 on the player timestamp of Lieutenant Jimenez's BWC, Lieutenant Jimenez is captured taking charge of the incident location, now considered a crime scene due to Sgt. Rivera's firearm discharge. Lieutenant Rivera instructs various officers to direct traffic, control crowd members, and tape off the street to prevent anyone from walking in or out. At 4:30 on the player timestamp, EMTs arrive and begin performing CPR on § 87(2)(b). A second group of EMTs follow shortly behind with a stretcher. § 87(2)(b) genitals remain exposed. At 2:47 on the player timestamp of PO Konnor's BWC (BR 16), EMTs lift § 87(2)(b) onto the gurney and begin to transport him towards an ambulance nearby. An EMT is captured covering § 87(2)(b) genitals with a white cloth (2:58). § 87(2)(b) genitals were exposed for approximately six minutes.

PO Barrett testified that when he pulled § 87(2)(b) from the driver's seat of the Volkswagen, PO Barrett pulled § 87(2)(b) pants down, which unintentionally exposed § 87(2)(b) genitals. PO Barrett could not recall what, if any, efforts were made to cover § 87(2)(b) exposed genitals.

Lieutenant Jimenez testified (BR 17) that he had no recollection of § 87(2)(b) physical state when he arrived on scene. Lieutenant Jimenez did not recall if § 87(2)(b) genitals were exposed and was unaware of which, if any, personnel on scene covered § 87(2)(b) exposed genitals. Lieutenant Jimenez testified his primary focus was closing off the intersection at the incident location and engaging in crowd control measures. During his CCRB interview, Lieutenant Jimenez was shown a portion of BWC footage in which § 87(2)(b) exposed genitals were captured, but the footage did not refresh his recollection.

Patrol Guide Procedure 203-09 (BR 18) states that members should be courteous and respectful when in contact with the public. Patrol Guide Procedure 203-10 (BR 19) states that a police officer is prohibited from engaging in conduct prejudicial to good order, efficiency, or discipline of the Department.

Lieutenant Jimenez testified he had no memory of § 87(2)(b) exposed genitals on scene, and that his primary focus was controlling the crowd and flow of traffic. This was consistent with Lieutenant Jimenez's BWC, in which he directed traffic, made commands to police officers, and generally took control of the scene upon his arrival at the location. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that Allegation R be closed as **substantiated**.

Allegation (G) Discourtesy: Sgt. Jonathan Rivera spoke discourteously to § 87(2)(b)

Allegation (K) Discourtesy: Police Officer Michelle Almanzar spoke discourteously to § 87(2)(b)

Allegation (N) Discourtesy: Police Officer Edward Barrett spoke discourteously to § 87(2)(b)

Throughout PO Almanzar's BWC, Sgt. Rivera is captured using the word "fuck," stating, "Yo if I have to fucking end up shooting you, bro," (3:00), "I'm gonna fucking shoot you," (3:06), "Get the fuck out," (3:32). At 3:15 on the player timestamp of PO Almanzar's footage, PO Almanzar states, "Fuck." At 4:19 on the player timestamp of PO Almanzar's BWC footage, PO Barrett is captured stating, "Get out the fucking car."

Sgt. Rivera testified he used profanity in these statements because he was attempting to gain § 87(2)(b) compliance. PO Almanzar testified that she used the word "fuck," because she was shocked at § 87(2)(b) attempt to flee the location. PO Barrett used profanity because the situation escalated so quickly, and PO Barrett was surprised.

NYPD Patrol Guide Procedure 200-02 (BR 20) states that members of service are to value human life, respect the dignity of each individual, and render their services with courtesy and civility. Members of service are to maintain a higher standard of integrity than is generally expected of others. Officers may use profanities "in the context of a dynamic situation over which [he or she is] attempting to gain control," but may not do so when it "[serves] no legitimate purpose but to belittle" a civilian (PD v. Pichardo, DAO DCT Case Number 2015-15012) (BR 21).

§ 87(2)(g)

it is therefore recommended that Allegations G, K, N be closed as **within NYPD guidelines**.

Allegation (O) Abuse of Authority: Detective Michelle Almanzar frisked § 87(2)(b)

Allegation (P) Abuse of Authority: Police Officer Steven Torres frisked § 87(2)(b)

Allegation (Q) Abuse of Authority: Police Officer Steven Torres searched § 87(2)(b)

At 4:17 on the player timestamp of PO Almanzar's BWC footage, § 87(2)(b) exits the Volkswagen and walks to the back of the car with his hands raised. PO Almanzar meets § 87(2)(b) there stating, "Why is § 87(2)(b) acting like that? What does he have on him?" § 87(2)(b) replies that he doesn't know, and faces the rear windshield of the Volkswagen, placing his hands on the top of the car. At 4:45 on the player timestamp, PO Almanzar frisks § 87(2)(b) on his waist and his legs.

PO Torres is among the first officers to respond to PO Almanzar's radio call for additional units. At 0:42 on the player timestamp of PO Torres' BWC (BR 22), he is captured approaching PO Almanzar and § 87(2)(b) at the rear of the Volkswagen. At 0:53, PO Torres handcuffs § 87(2)(b) behind his back. From 1:30-1:50, PO Torres frisks § 87(2)(b) and enters his pants pockets, briefly removing and then returning an unidentified object. At 1:52, PO Torres frisks § 87(2)(b) entire body including his waist, legs, chest, and the hood of his sweatshirt, before placing § 87(2)(b) in the rear seat of a marked police vehicle.

PO Almanzar testified that throughout the entire stop, § 87(2)(b) was compliant and was in no way resisting. PO Almanzar did not suspect § 87(2)(b) of any crime, and she did not observe anything about § 87(2)(b) person that aroused her suspicion. PO Almanzar testified that she frisked § 87(2)(b) to make sure that § 87(2)(b) didn't have any contraband or weapons on him and for officer safety.

PO Torres testified (BR 23) that upon reaching PO Almanzar and § 87(2)(b) at the rear of the Volkswagen, he relieved PO Almanzar and took custody of § 87(2)(b). At this point, PO Torres frisked § 87(2)(b) for officer safety. PO Torres then frisked § 87(2)(b) again and briefly removed an object from § 87(2)(b) pocket before placing § 87(2)(b) into a police vehicle, again for officer safety. PO Torres could not testify to any observations he made that led him to believe § 87(2)(b) was armed at this time. PO Torres did not know what, if any, crime § 87(2)(b) was suspected of having committed. PO Torres believed that § 87(2)(b) was under arrest, but no officer on scene communicated anything about § 87(2)(b) status prior to the frisk or search.

As per *People v. De Bour*, 40 N.Y.2d 210 [1976], (BR 24), an officer may forcibly stop and detain a person if the officer has reasonable suspicion that the person has committed, is committing or is about to commit a felony or misdemeanor. An officer may frisk the individual if the officer reasonably suspects that he is in danger of physical injury by virtue of the detainee being armed.

§ 87(2)(g)

it is therefore recommended that **Allegations O-Q** be closed as **substantiated**.

Allegation (S) Abuse of Authority: Police Officer Michelle Almanzar failed to provide § 87(2)(b) with a business card.

Allegation (T) Abuse of Authority: Police Officer Steven Torres failed to provide § 87(2)(b) with a business card.

PO Almanzar testified that she did not provide § 87(2)(b) with a business card after the frisk because she was removed to the hospital immediately following the incident. PO Torres did not testify to having provided § 87(2)(b) with a business card.

After the frisk and search on scene, from 14:48 to 23:00 on the player timestamp of his BWC, PO Torres guides § 87(2)(b) into the 52nd Precinct stationhouse and leads him up to the Detective Squad located on the second floor of the building. At 23:00, PO Torres leads § 87(2)(b) into the Detective Squad room and instructs him to take a seat in the waiting room before deactivating his BWC. The video does not capture PO Torres offering § 87(2)(b) a business card prior to the ending of his BWC, which he was not required to keep recording per the Patrol Guide as he was inside a Departmental facility.

§ 87(2)(b) remained unavailable to the investigation and thus unable to confirm whether he ultimately received a business card from PO Torres.

NYPD Patrol Guide Procedure 203-09 (BR 18) states officers are required to offer a business card at the conclusion of the several enumerated law enforcement activities including frisks and/or a search of persons or property, including vehicles, except in cases when a summons is issued or an arrest is made. Officers are exempt from providing a business card if exigent circumstances are present, i.e., physical resistance, flight, imminent danger of physical injury or damage to property, or other factors make such procedure impractical.

It is undisputed that PO Almanzar frisked § 87(2)(b) who was not arrested or issued any summonses. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b)

Given the above, it is therefore recommended that **Allegation S** be closed as **within NYPD guidelines**.

It is undisputed that PO Torres frisked and searched § 87(2)(b) before placing him in a police vehicle to be removed to the 52nd Precinct Detective Squad. § 87(2)(g)

PO Torres' BWC does not capture him offering § 87(2)(b) a business card prior to his BWC deactivation at the stationhouse. § 87(2)(g)

it is therefore recommended that **Allegation T** be closed as **alleged victim unavailable**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- PO Barrett has been a member of service for eight years and has been a subject in 12 CCRB complaints and thirty-one allegations, of which three were substantiated.
 - 202101302 involved a substantiated allegation of an entry of premises against PO Barrett. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A.
 - 202101815 involved substantiated allegations of an entry and search of premises against PO Barrett. The Board recommended Command Discipline B and the NYPD has not yet imposed discipline. § 87(2)(g)
- Sgt. Rivera has been a member of service for 12 years and has been a subject in 14 CCRB complaints and 41 allegations, of which two were substantiated.
 - 201903406 involved substantiated allegations of an entry and search of premises against Sgt. Rivera. The Board recommended Command Discipline B and the NYPD has not yet imposed discipline. § 87(2)(g)
- PO Almanzar has been a member of service for eight years and has been a subject in eight CCRB complaints and 14 allegations, one of which was substantiated.
 - 202101815 involved a substantiated allegation of a search of premises against PO Almanzar. The Board recommended Command Discipline B and the NYPD imposed Command Discipline B. § 87(2)(g)
- Lieutenant Jimenez has been a member of service for 13 years and has been a subject in one CCRB complaint and two allegations, neither of which were substantiated. § 87(2)(g)
- PO Torres has been a member of service for six years and has been a subject in ten CCRB complaints and 25 allegations, of which three were substantiated.
 - 202004452 involved a substantiated allegation of a frisk against PO Torres. The Board recommended Command Discipline A and the NYPD imposed no penalty.
 - 202002992 involved substantiated allegations of a frisk and a failure to provide RTKA card against PO Torres. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) brother, § 87(2)(b) and partner, § 87(2)(b) filed a Notice of Claim with the City of New York for wrongful death of a decedent, mental and physical pain and suffering, medical expenses, and loss of earnings, amongst additional causes of action, and sought 200 million dollars as redress (BR 25). § 87(2)(b) § 87(2)(b)

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
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Squad: 14

Investigator:	C.V. Signature	Inv. Carlo Vescovi Print Title & Name	04/17/2023 Date
Squad Leader:	Cassandra Fenkel Signature	IM Cassandra Fenkel Print Title & Name	04/18/2023 Date
Reviewer:	 Signature	 Print Title & Name	 Date